

Thus, Congress should consider the following reforms to existing low-skilled temporary worker programs as part of a program to reduce illegal immigration, strengthen the U.S. economy and protect U.S. workers:

- Develop a mechanism to adjust visa limits up or down in response to changing economic conditions. The 66,000 visa annual cap on the H-2B program was established by Congress in 1990, and has remained in place through 25 years of dynamic changes to the U.S. economy; limits on other temporary and permanent visas are equally inflexible. MPI has long recommended that Congress establish a federal immigration and labor markets research agency that reports to an independent, bipartisan expert panel charged with making bi-annual recommendations to Congress and the president about visa numbers, and that the panel's recommendations go into effect unless Congress acts to override them. [56] Employers should have access to more visas during years of economic expansion, and the number of available visas should be proportionally reduced during years of recession or slow-growth periods. Whether through such an expert panel, commission or comparable mechanism, it is essential that Congress develop a system that introduces needed flexibility into a visa system that is currently frozen and outdated, changing only once every few decades.
- Permit foreign workers to change jobs and provide them with additional labor protections. Making employers the owners of their workers' visas invites exploitation and reduces economic growth by preventing workers from moving into more competitive positions. Visa portability would permit immigrants to leave bad jobs and abusive employers, allowing more room for market forces to set wages and working conditions. [57] One way to allow visa portability would be to create a two-track system, in which employers are approved for the right to hire foreign workers, workers are approved for the right to work in the United States and both sides are free to contract with any approved party. [58]

References:

11. Doris Meissner, Deborah W. Meyers, Demetrios G. Papademetriou and Michael Fix, "Immigration and America's Future: A New Chapter" (Washington, DC: MPI, 2006), www.migrationpolicy.org/research/immigration-and-americas-future-new-chapter;
22. Demetrios G. Papademetriou, Doris Meissner, Marc R. Rosenblum and Madeleine Sumption, "Harnessing the Advantages of Immigration for a 21st-Century Economy: A Standing Commission on Labor Markets, Economic Competitiveness, and Migration" (Washington, DC: MPI, 2009), www.migrationpolicy.org/research/harnessing-advantages-immigration-21st-century-economy-standing-commission-labor-markets.
33. Papademetriou, Meissner, Rosenblum and Sumption, "Aligning Temporary Immigration Visas with U.S. Labor Market Needs," 16.
44. This approach was proposed in S.744, the Border Security, Economic Opportunity and Immigration Modernization Act that passed the Senate in June 2013. (Note: The references are formatted as footnotes within the text.)